



No. BV20D01752

**IN THE FAMILY COURT
SITTING AT THE ROYAL COURTS OF JUSTICE**

The Matrimonial Causes Act 1973

The Marriage of Nadia Zahmoul and Karim Nouredine Zahmoul

After hearing Brent Molyneux KC for the applicant and Duncan Brooks KC for the respondent

After consideration of the documents lodged by the parties

**ORDER MADE BY MR JUSTICE MACDONALD ON 16 JANUARY 2024 SITTING IN
PRIVATE AT A PRE-TRIAL REVIEW**

**WARNING: IF YOU DO NOT COMPLY WITH THIS ORDER, YOU MAY BE HELD TO
BE IN CONTEMPT OF COURT AND YOU MAY BE SENT TO PRISON, BE FINED, OR
HAVE YOUR ASSETS SEIZED.**

The parties

The Applicant is Nadia Zahmoul

The Respondent is Karim Nouredine Zahmoul

RECITALS:

Recitals as to costs incurred / expected to be incurred

1. It is recorded that the applicant has filed with the court and served on the respondent a costs estimate in Form H stating that the applicant has incurred costs of £1,794,092.17 up to today's hearing.
2. It is recorded that the respondent has filed with the court and served on the applicant a costs estimate in Form H stating that the respondent (a) has incurred costs of £907,026.25 up to today's hearing.

Agreements

IT IS ORDERED THAT:

3. The applicant's application dated 7 December 2023 is dismissed.

Legal Services Order

4. The Legal Services Order made by Mr Justice MacDonald on 30 June 2023 at paragraph 8(b) is varied so that the payment of £151,000 shall be paid by 4pm on 17 January 2024 and shall be directed towards trial preparation and representation only.

Disclosure

5. By 4pm on 30 January 2024, the applicant shall send the following to the respondent solicitors:
 - i. Disclosure with respect to the two incoming transactions from Hopkins and Jones of £20,000 on 28 June 2023 and £29,692.03 on 11 July 2023, with documentary evidence in support.
 - ii. In the event the applicant has pawned or sold any of the respondent's personal items listed at paragraph 6 below, disclosure of which items she has sold or borrowed against and provide documentary evidence in support.
 - iii. Full statements of her Fidelity investment and Fidelity rollover IRA account from May 2022 to September 2023;
 - iv. Full copies of her US tax returns (including FBAR and gift forms) for 2020, 2021 and 2022 (once available);
 - v. Credit card statements of her Bank of Jackson Hole credit card;
 - vi. Disclosure with respect to her IRS refund;
 - vii. Disclosure with respect to other liabilities the applicant has (with reference to Moneyline and Amex Epayment loans in her Wells Fargo statements) with documentary evidence in support;
 - viii. The loan agreement and a schedule of all payments advanced by the applicant's father to her, showing dates and amounts for each payment;
 - ix. Up to date valuation for the Range Rover vehicle that is in the applicant's possession. In so far as the vehicle has been sold, the applicant shall provide documentary evidence of the proceeds of sale together with the relevant bank statement showing where the proceeds of sale have been paid;

Please address all communications for the Court to the Principal Registry of the Family Division, Family Proceedings Department, First Avenue House, 42-49 High Holborn, London WC1V 6NP quoting the number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

- x. Statements for Wells Fargo credit card from inception to December 2022;
 - xi. An explanation of why the applicant does not have the tax returns for years ending April 2020, 2021, 2022 and 2023; and
 - xii. An explanation of how the applicant secured borrowing from Detach resulting in a drawdown of £40,800 on 28 March 2023, with documentary evidence in support.
6. By 4pm on 30 January 2024 the applicant shall send to the respondent's solicitors details of the whereabouts of the chattels listed below (to the best of the applicant's knowledge and belief):
- i. Patek Philippe Aquanaut 5167 A (2012) watch
 - ii. Rolex Explorer II (1998) watch
 - iii. Rolex GMT II New Model with Ceramic Bezel (2012) watch
 - iv. Rolex Sea Dweller DeepSea (2012) watch
 - v. Rolex Daytona (2005) watch
 - vi. Hublot St Barths Special Edition (2006) watch
 - vii. Bulgari Chronograph (1996) watch
 - viii. Ebel Wave (1984) watch
 - ix. Piaget White Gold (1961) watch
 - x. Breitling 1997 Breitling Chrono Cockpit chronograph
 - xi. The respondent's mother's rose gold southern cross pendant

Tax

7. Paragraphs 11.2 and 11.3 of the order dated 30 September 2023 and 8a-d of the order dated 1 November 2023 are hereby discharged. The court will proceed on the basis of the tax information that has been disclosed by the parties.

Pensions

8. It is recorded that neither party has made an application for expert evidence in relation to the question of whether the respondent's pension arrangements are susceptible to a pension sharing order made by the English court. Paragraphs 12.4 and 12.5 of the order dated 30 September 2023 and 8e-f of the order dated 1 November 2023 are hereby discharged. The court will proceed on the basis of the disclosure that has already been provided by the parties.

Property Valuations

9. Paragraphs 15.1 and 15.2 of the order dated 30 September 2023 and 8i-j of the order dated 1 November 2023 are hereby discharged. The parties shall jointly obtain marketing appraisals of the properties listed below. The applicant shall, by 4pm on 26 January 2024, provide a list of 3 proposed agents (with whom she has had no prior contact) for the Wyoming properties and 3 proposed agents for the New York properties together with a draft letter of instruction and cost estimates for the appraisals (should any fee be payable). The respondent shall, by 4pm on 30 January 2024, select one of those agents for the Wyoming properties and one for the New York properties. The appraisals shall be served on the parties by 4pm on 6 February 2024. In the event any fees are payable for the appraisals, such fees shall be met equally between the parties. In default of compliance with this paragraph, the final hearing shall proceed on the basis of the following valuations for any property for which an updated appraisal has not been obtained:
- (a) 3100 West Arrowhead Road, Wyoming, USA: \$7,420,000
 - (b) 3093 West Arrowhead Road, Wyoming, USA \$7,390,000
 - (c) 240 Frost Street, Brooklyn, NY, USA: \$3,020,000

Cryptocurrency Expert Report

10. It is recorded that the letter of instruction was sent to Mr Pinto on 11 December 2023 and the enclosures were sent on 12 January 2024. The timetable in paragraphs 10-10.3 of the order dated 30 September 2023 and paragraphs 8k-l of the order dated 1 November 2023 are varied as follows:
- (a) The Zoom meeting pursuant to paragraph 10.1 of the 30 September 2023 order shall take place by 4pm on 5 February 2024;
 - (b) Mr Pinto shall finalise his report by 4pm on 9 February 2024;
 - (c) Any clarificatory questions shall be sent to Mr Pinto by 4pm on 16 February 2024;
 - (d) Mr Pinto shall attend the final hearing at 10am on Tuesday 20 February 2024 to give oral evidence (with a time estimate of his evidence of one day). If Mr Pinto has not replied to the clarificatory questions in writing beforehand, he shall reply to those questions in his evidence.

Conduct Pleadings

11. The time for the respondent to file a defence to the applicant's conduct pleading is extended until 4pm on 6 February 2024.

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12. Unless, by 4pm on 6 February 2024, the applicant sends to the respondent's solicitors her defence to the respondent's conduct pleading, the applicant shall be debarred from serving any such defence.

Narrative Statements

13. The time for the parties to file and serve their s.25 statements is extended to 4pm on 30 January 2024 (subject to a page limit of 20 sides of A4 in 12 point font, 1.5 line spacing and standard margins).

Bundle for Final Hearing

14. The parties have permission for the bundle to extend to 1,750 pages. The parties shall agree an index by 4pm on 29 January 2024. In default of agreement, the parties shall email the court by 4pm on 2 February 2024 with a composite index showing all areas of disagreement. The court shall approve and finalise the index by 4pm on 9 February 2024. The applicant (if represented, if not, the respondent) shall send the bundle in electronic form (with OCR recognition) by 4pm on 12 February 2024.
15. The bundle shall include:
- i. an updated composite case summary using Template ES1
 - ii. an updated composite schedule of assets using Template ES2;
 - iii. a composite chronology recording in neutral terms the key dates of the parties' relationship and of the litigation and where any unagreed events are clearly denoted
 - iv. an agreed summary of the issues to be determined;

Template for Final Hearing

16. The timetable for the final hearing is as follows:

Mon 19.02.24 (day 1) Pre-reading (no attendance required)

Tues 20.02.24 (2) Evidence of Mr Pinto, Cryptocurrency SJE; (time permitting) W's Evidence

Weds 21.02.24 (3) W's Evidence. (Time permitting) H's Evidence

Thurs 22.02.24 (4) H's Evidence

Fri 23.02.24 (5) H's Evidence

Please address all communications for the Court The Family Division of the High Court, 1st Mezzanine, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

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Mon 26.02.24 (6) Preparation of closing submissions

Tues 27.02.24: (7) AM: H's closing submissions

PM: W's closing submissions

Weds 28.02.24 (8): Judgment writing (no attendance required)

Thurs 29.02.24 (9): Judgment writing (no attendance required)

Fri 01.03.24 (10) (if not reserved) Judgment, order and costs

17. Both parties shall attend the final hearing in person, including in order to give oral evidence.

Costs

18. Costs in the application.

Dated 15 January 2024



M.K.M

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